



CHAPTER 93.

An Act to make provision, in connection with Loans raised for the purposes of the present War, for the establishment of a Post Office stock register, and as to stock inscribed in that register, and to make certain amendments, in connection with such Loans and generally in connection with War Finance, in the Law relating to Savings Banks, Friendly Societies, Trade Unions, and otherwise. A.D. 1915.
[23rd December 1915.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1) The Treasury may provide for the establishment of a Post Office stock register (in this Act referred to as "the register"), and may direct that any four and a half per cent. War Loan Stock, 1925-1945, or any other stock issued in connection with any loan raised for the purposes of the present war, which is not inscribed in the names of individual holders in the books of the Bank of England or the Bank of Ireland, shall be inscribed in the register. Establishment
of Post Office
stock register.

(2) The Treasury, in conjunction with the Postmaster General, and in conjunction with the National Debt Commissioners so far as any regulations relate to those Commissioners, may make regulations with respect to the keeping of the register, and the stock required to be inscribed therein, and in particular with respect to—

- (a) investments in and sales of any such stock and the receipt and payment of dividends thereon; and
- (b) the manner in which and the conditions subject to which stock may be transferred either from the name of one holder inscribed on the register to that of any other person so inscribed or to be inscribed, or from the register to the books of the Bank of England or the Bank of Ireland, and vice versa; and

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(c) the commissions and fees payable in respect of dealings in stock inscribed in the register; and

(d) the maximum amount of stock which may be inscribed in the register in any one holding in any one year, or at any one time, and the exceptions which are to be allowed from any such limits in the case of friendly societies, trade unions, or other similar bodies.

33 & 34 Vict.
c. 71.

(3) Regulations made under this Act may provide for the total amount of stock inscribed in the register being held by the National Debt Commissioners and inscribed in their names in the books of the Bank of England, and for the application, with such modifications as appear necessary or expedient, to stock inscribed in the register, or to bearer bonds issued under this Act, of any of the provisions of the National Debt Act, 1870, and of any Act, regulation or warrant relating to savings banks, and may contain such consequential and supplemental provisions as appear necessary or expedient for giving full effect to the regulations.

Issue through
Post Office of
bearer bonds.

2. Regulations made under this Act may provide, in connection with any stock inscribed in the register, for the issue through the Post Office of bearer bonds for such amounts as may be provided by the regulations, with coupons annexed entitling the bearer of the coupons to the dividends on the stock.

Income tax on
stock inscribed
in the register.

3. The interest on any stock inscribed in the register which does not exceed the nominal amount of two hundred pounds shall be paid without deduction of income tax; but any such interest shall be accounted for and charged to income tax under the third case of Schedule D, subject, however, to any provisions of the Income Tax Acts with respect to exemptions or abatements.

Settlement of
disputes.

4.—(1) If any dispute arises between the Postmaster General, or the trustees of any savings bank, and the holder of any stock inscribed in the register, or any person claiming to be entitled to any such stock, the matter in dispute shall be referred in writing to the Chief Registrar of Friendly Societies.

(2) On any such reference being made, the Chief Registrar may proceed ex parte on notice in writing sent by post to the Postmaster General or trustees, and may inspect the register, and may administer oaths to any witnesses appearing before him; and his award on the matter in dispute shall be final and binding on all parties.

(3) In the application of this section to Scotland and Ireland, the assistant registrar for Scotland or Ireland, respectively, shall be substituted for the Chief Registrar of Friendly Societies.

5. Where any money which may be raised under the War Loan Act, 1915, is raised through the Post Office, the Treasury may make regulations as to the manner in which and conditions under which the money may be raised, and may by those regulations apply any provisions of any Act, including this Act, relating to deposits in savings banks, with such modifications as appear necessary or expedient.

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Regulations
as to loans
raised through
the Post Office.
5 & 6 Geo. 5.
c. 55.

6. Any regulations made under this Act shall be laid before each House of Parliament as soon as may be.

Regulations to
be laid before
Parliament.

7.—(1) The Treasury may, by order, direct that any provisions of any Act by which a limit is imposed on the amount which may be deposited in savings banks shall for such time (not being longer than the duration of the present war and a period of six months thereafter) and subject to such conditions as may be specified in the order, cease to have effect, or be modified to such an extent as may be specified in the order.

Power to re-
move or alter
temporarily
limit on
savings banks
deposits.

(2) Where any such order is made, the amount (if any) by which the deposit at the time when the order ceases to have effect of any person affected by the order exceeds the deposit of that person at the time when the order was made, shall, as from the time when the order ceases to have effect, be disregarded in calculating, for the purposes of any limit on the total amount which may be deposited, the amount deposited by that person.

8.—(1) Notwithstanding anything in any Act to the contrary, any part of the funds of any registered friendly society or any branch thereof, or of any registered trade union or society approved for the purposes of the National Insurance Act, 1911, and any stocks, shares, or securities held by or on behalf of any such society, union, or branch, may, if the Public Trustee agrees to such transfer, and rules of the society, union, or branch are made for the purpose, be transferred to the Public Trustee.

Power of Pub-
lic Trustee to
hold securities
of friendly
societies, &c
1 & 2 Geo. 5.
c. 55.

(2) The Public Trustee shall invest, in accordance with the rules, any funds so transferred to him, and shall pay the interest on any stocks, shares, or securities acquired by or transferred to him in pursuance of this section to the trustees of the society, union, or branch; and shall, if and when so required by those trustees, transfer the capital of the stocks, shares, or securities to them, or realise the same and transfer the proceeds to them.

(3) Pending the making of rules, any War Loan Stock, 1925-1945, held by or on behalf of any such society, union, or branch may, if the Public Trustee agrees to such transfer, be transferred to him as though rules were made for the purpose.

(4) The Public Trustee shall be completely exonerated from any liability in relation to any stock, shares, or securities held by him in pursuance of this section, and no action shall lie against the Public Trustee in respect of any such stock, shares, or securities, provided that he acts in accordance with the provisions of this section.

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(5) This section shall be deemed to have had effect as from the second day of July nineteen hundred and fifteen.

(6) This section shall not apply to Scotland.

Investment
of funds of
friendly
societies, &c.
in Scotland.

9.—(1) Notwithstanding anything in any enactment to the contrary, it shall be lawful, when provision is made therefor by the rules of any friendly society or trade union registered in Scotland, or of any society approved by the Scottish Insurance Commissioners for the purpose of the National Insurance Act, 1911, or of any branch of such society or union, for any funds of such society or union or branch which may lawfully be invested in stock issued in connection with any loan raised for the purposes of the present war, to be invested in such stock in the name of the "Accountant of Court," provided that pending the making of rules so providing it shall be lawful for the executive body of such society, union, or branch to invest any such funds in the said stock in the name of the "Accountant of Court" as if such provision were made by the rules.

(2) When any funds of such society, union, or branch are so invested in any such stock in the name of the "Accountant of Court," the exercise of any power or discretion exercisable by the trustees or executive body of such society, union, or branch in relation to such funds, shall remain vested in such trustees or executive body, and the Accountant of Court shall concur in and perform all acts necessary to enable the exercise of any such power or discretion by the trustees or executive body, and shall not be liable for any act or default on the part of such trustees or executive body.

(3) All sums payable by way of interest or dividend on such investment or in respect of the sale or realisation of the same, shall when received by the Accountant of Court be paid over by him to the trustees or executive body of such society, union, or branch, or to such person or into such bank to the credit of such person as the trustees or executive body may direct, and on such payment the Accountant of Court shall be exonerated from seeing to the application of such sums, and shall not be answerable for any loss or misapplication thereof.

Amount which
may be paid in
any one day by
National Debt
Commissioners
to savings
bank.
26 & 27 Vict.
c. 87.

10. The limit of ten thousand pounds imposed by section twenty-seven of the Trustee Savings Banks Act, 1863, on the amount for which the National Debt Commissioners may issue orders for payment on any one day on account of the same savings bank may be exceeded if it appears to the National Debt Commissioners that, owing to any special circumstances existing at the time, it is desirable that the limit should be exceeded.

Short title.

11. This Act may be cited as the War Loan (Supplemental Provisions) Act, 1915, and so far as it relates to Post Office Savings Banks may be cited with the Post Office Savings

Banks Acts, 1861 to 1908, and so far as it relates to trustee A.D. 1915.
savings banks may be cited with the Trustee Savings Banks —
Acts, 1861 to 1904.

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FOR

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